

MUTUAL NON-DISCLOSURE AGREEMENT

Agreement No.: NDA-2026-007

Counterparty: Halcyon Analytics GmbH

Provider: Soft Suave Technologies Private Limited

Effective Date: 22 May 2026

Document Version: v1.0

Status: Executed

This Mutual Non-Disclosure Agreement (this "**Agreement**") is made as of 22 May 2026 between **Soft Suave Technologies Private Limited**, of Chennai, India ("**Soft Suave**"), and **Halcyon Analytics GmbH**, of Berlin, Germany ("**Halcyon**"). Each may act as a "**Disclosing Party**" or a "**Receiving Party**".

Section 1. Purpose

1.1 The Parties wish to explore a potential commercial relationship concerning the integration of Halcyon's analytics platform with Soft Suave's delivery tooling (the "**Purpose**"). This Agreement governs the exchange of Confidential Information for the Purpose only.

1.2 Nothing in this Agreement obliges either Party to enter into any further agreement, to proceed with the Purpose, or to disclose any particular information.

Section 2. Definitions

2.1 "Confidential Information" means any information disclosed by a Disclosing Party to a Receiving Party, in any form, that is marked confidential, is identified as confidential at the time of oral disclosure and confirmed in writing within fourteen (14) days, or that a reasonable person would understand to be confidential from its nature or the circumstances of its disclosure.

2.2 "Representatives" means a Party's directors, officers, employees, Affiliates, and professional advisers.

2.3 "Residual Knowledge" means information retained in the unaided memory of a Receiving Party's Representatives who have had access to Confidential Information, where that Representative has not intentionally memorised the information for the purpose of retaining it.

Section 3. Obligations of Confidentiality

3.1 Standard of Care. Each Receiving Party shall protect the Disclosing Party's Confidential Information using **no less than a reasonable degree of care**, and in any event not less than the degree of care it applies to its own confidential information of like importance.

3.2 Permitted Disclosure. A Receiving Party may disclose Confidential Information only to those Representatives who need to know it for the Purpose and who are bound by confidentiality obligations

no less protective than this Agreement. The Receiving Party remains responsible for any breach by its Representatives.

3.3 Restrictions on Use. A Receiving Party shall use the Disclosing Party's Confidential Information solely for the Purpose and shall not use it for any competitive, commercial, or other advantage.

3.4 No Reverse Engineering. A Receiving Party shall not reverse engineer, decompile, or disassemble any software, prototype, or sample provided by the Disclosing Party.

Section 4. Term and Survival

4.1 Term. This Agreement commences on the Effective Date and continues for **two (2) years**, unless terminated earlier by either Party on thirty (30) days' written notice.

4.2 Survival of Obligations. The confidentiality obligations in Section 3 survive termination or expiry of this Agreement for a period of **three (3) years** from the date of termination or expiry.

4.3 Trade Secrets. Notwithstanding Section 4.2, where Confidential Information constitutes a trade secret under applicable law, the obligations in Section 3 continue for so long as the information remains a trade secret.

Section 5. Exclusions

5.1 The obligations in Section 3 do not apply to information that the Receiving Party can demonstrate: (a) was publicly available at the time of disclosure, or became publicly available thereafter through no act or omission of the Receiving Party; (b) was lawfully in the Receiving Party's possession before disclosure and free of any confidentiality obligation; (c) was lawfully received from a third party under no obligation of confidentiality; or (d) was independently developed by the Receiving Party without use of or reference to the Confidential Information.

5.2 Compelled Disclosure. A Receiving Party may disclose Confidential Information to the extent required by law, regulation, or court order, provided that it gives the Disclosing Party prompt written notice (where legally permitted) and reasonable assistance in seeking protective treatment.

5.3 Residual Knowledge. Nothing in this Agreement restricts a Party's use of Residual Knowledge, save that this Section 5.3 does not grant any licence under either Party's patents or copyrights.

Section 6. Return and Destruction

6.1 On written request by the Disclosing Party, or on termination or expiry of this Agreement, the Receiving Party shall within **thirty (30) days** return or destroy all Confidential Information in its possession and certify the destruction in writing.

6.2 The Receiving Party may retain one (1) archival copy of Confidential Information solely to the extent required by law or its internal compliance policy, which copy remains subject to Section 3 for so long as it is retained.

Section 7. No Licence; No Warranty

7.1 No licence under any patent, copyright, trademark, or other intellectual property right is granted by this Agreement, whether expressly or by implication.

7.2 All Confidential Information is provided "as is". Neither Party makes any representation or warranty as to its accuracy, completeness, or fitness for any purpose.

Section 8. Remedies

8.1 Each Party acknowledges that a breach of this Agreement may cause irreparable harm for which monetary damages would be an inadequate remedy, and that the Disclosing Party is entitled to seek injunctive relief in addition to any other remedies available.

8.2 Limitation. Save in respect of a breach of Section 3, neither Party's aggregate liability under this Agreement shall exceed **fifty thousand euros (EUR 50,000)**.

Section 9. Governing Law and Jurisdiction

9.1 This Agreement is governed by and construed in accordance with the laws of **England and Wales**.

9.2 The courts of **London, England** have exclusive jurisdiction over any dispute arising out of or in connection with this Agreement.

Section 10. General

10.1 Entire Agreement. This Agreement constitutes the entire agreement between the Parties relating to its subject matter.

10.2 Amendment. This Agreement may be amended only in writing signed by both Parties. No amendments have been executed as at the date of this document.

10.3 Assignment. Neither Party may assign this Agreement without the other Party's prior written consent.

10.4 Counterparts. This Agreement may be executed in counterparts, each of which is an original and all of which together constitute one agreement.

EXECUTED by the Parties on 22 May 2026.

For and on behalf of **Soft Suave Technologies Private Limited** Name: R. Anand — Title: Director

For and on behalf of **Halcyon Analytics GmbH** Name: Katrin Vogel — Title: Managing Director